

Sub-section (4) provides that if the goods to be sold include essential commodities, the copy of statement may be sent to the representative of the Central Government, the State Government and the District Magistrate within whose local limits such notified station is situated.

90. Disposal of unremoved goods at stations.- (1) If any goods entrusted for carriage to any notified station by a train intended solely for the carriage of goods are not removed from such station by a person entitled to do so within a period of seven days after the termination of transit thereof at such station, the railway administration may, subject to the provisions of sub-section (2), sell such goods by public auction and apart from exhibiting, in accordance with the provisions of sub-sections (3) of Sec. 89, a statement containing a description of such goods, it shall not be necessary to give any notice of such public auction, but the date on which such auction may be held under this sub-section may be notified in one or more local newspapers, or where there are no such newspapers, in such manner as may be prescribed :

Provided that if at any time before the sale of such goods under this sub-section, the person entitled thereto pays the freight and other charges and the expenses due in respect thereof to the railway administration, he shall be allowed to remove such goods.

(2) If any goods which may be sold by public auction under sub-section (1) at a notified station, being essential commodities, are required by the Central Government or the State Government for its own use or if the Central Government or such State Government considers that it is necessary for securing the availability of all or any such essential commodities at fair prices to do, it may, by order in writing, direct the railway servant in-charge of such auction to transfer such goods to it or to such agency, co-operative society or other person (being an agency, co-operative society or other person subject to the control of the Government) engaged in the business of selling such essential commodities as may be specified in the direction.

(3) Every direction issued under sub-section (2) in respect of any essential commodity shall be binding on the railway servant to whom it is issued and the railway administration and it shall be a sufficient defence against any claim by the person entitled to the goods that such essential commodities have been transferred in compliance with such direction :

Provided that –

- (a) such direction shall not be binding on such railway servant or the railway administration –

- i) If it has not been received by the railway servant sufficiently in time to enable him to prevent the sale of the essential commodities to which it relates; or
 - ii) if before the time appointed for such sale, the person entitled to such goods pays the freight and other charges and the expenses due in respect thereof and claims that he be allowed to remove the goods; or
 - iii) if the price payable for such goods (as estimated by the Central Government or, as the case may be, the State Government) is not credited to the railway administration in the prescribed manner and the and the railway administration is not indemnified against any additional amount which it may become liable to pay towards the price by reason of he of the price not having been computed in accordance with the provisions of sub-section (4);
- (b) Where directions are issued in respect of the same goods both by the Central Government , the directions received earlier shall prevail.

(4) The price payable for any essential commodity transferred in compliance with a direction issued under sub-section (2) shall be the price calculated in accordance with the provisions of sub-section (3) of Sec. 3 of the Essential Commodities Act, 1955 (10 of 1955).

Provided that –

- (a) in the case of any essential commodity being a food-stuff in respect whereof a notification issued under sub-section (2) shall be the price calculated in accordance with the provisions of sub-section (3) of Sec. 3 of the Essential Commodities Act, 1955 (10 of 1955) is in force in the locality in which the notified station is situated, the price payable shall be calculated in accordance with the provisions of Cls. (iii) and (ii) of that sub-section;
- (b) in the case of an essential commodity being any grade or variety of foodgrains, edible oil-seeds or edible oils in respect whereof no notification issued under sub-section (3-A) of Sec. 3 of Essential Commodities Act, 1955 (10 of 1955), is in force in the locality in which the notified station is situated, the price payable shall be calculated in accordance with the provisions of sub-section (3-B) of that section;
- (c) in the case of an essential commodity being any kind of sugar in respect whereof no notification issued under sub-section (30A) of Sec. 3 of the Essential Commodities Act, 1955 (10 of 1955), is in force

in the locality in which the notified station is situated, the price payable shall, if such sugar has been booked by the producer to himself, be calculated in accordance with the provisions of sub-sections (3-C) of that section

Explanation.- For the purposes of this clause, the expressions “Producer” and “Sugar” shall have the meanings assigned to these expressions in the Explanation to sub-section (3-C) of Sec. 3 and Cl. (e) of Sec. 2 of the Essential Commodities Act, 1955 (10 of 1955) respectively.

Comment

Section 90 provides for the manner of disposal not removed from notified stations.

91. Price to be paid to person entitled after deducting dues.- (1) Out of the proceeds of any sale of goods under sub-section (1) of Sec. 90 or the price payable therefore under sub-section (4) of that section, the railway administration may retain a sum equal to the freight and other charges due in respect of such goods and the expenses incurred in respect of the goods and the auction thereof and render the surplus, if any, to the person entitled thereto.

(2) Notwithstanding anything contained in sub-section (1) the railway administration may recover by suit any such freight or charge or expenses referred to therein or balance thereof.

(3) Any goods sold under sub-section (1) of Sec. 90 or transferred in compliance with the directions issued under sub-sections(2) of that section shall vest in the buyer or the transferee free from all encumbrances but subject to a priority being given for the sum which may be retained by a railway administration under sub-section(1), the person in whose favour such encumbrance subsists may have a claim in respect of such encumbrance against the surplus, if any, referred to in that sub-section.

Section 91, Sub-section (1) lays down the railway administration may retain the freight and other charges and render the surplus to the person entitled thereto.

Sub-section (2) provides that realization of freight and other charges by public auction of the goods shall not bar recovery by suit of freight and other charges by railway administration.

Sub-section (3) provides that any goods sold under sub-section (1) shall vest in the buyer of the transferee free from all encumbrances.